



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 3, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202004307 regarding Lieutenant Christopher Catalano, Tax No. 936323 (DADS No. 2021-23443)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Lieutenant Catalano (then Sergeant) will receive no disciplinary action for this incident. In this matter, Lieutenant Catalano took hold of the complainant's arm in order to guide her to the ground so that she may be taken into custody by other officers due to her failure to adhere to the curfew order during a large scale protest.

Lieutenant Catalano's very brief encounter with the complainant, which lasted mere seconds, was a proper use of department tactics. As the video evidence demonstrated, the complainant began to move in the opposite direction from Lieutenant Catalano after he had already begun to approach her. In taking hold of the complaint's arm, Lieutenant Catalano was able to gain control of the complainant so that she could be guided to the ground and properly handcuffed. Ultimately, the complainant was issued a summons for the violation and was released.

Therefore, the Police Commissioner directs that Lieutenant Catalano receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-02 (Use of Force) and Patrol Guide Procedure 221-03 (Reporting and Investigation of Force Incident or Injury to Persons During Police Action/TRI Report).

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Website: <http://nyc.gov/nypd>

If you have any questions, please feel free to contact me at



Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', written over the printed name.

Lourdes Soto

Inspector

Commanding Officer

Police Commissioner's Office